AO 91 (Rev. 11/11) Criminal Complaint (Rev. by USAO on 3/12/20) ☐ Original ☐ Duplicate Original

LODGED
CLERK, U.S. DISTRICT COURT
12/6/2024
CENTRAL DISTRICT OF CALIFORNIA
BY: MMC DEPUTY

UNITED STATES DISTRICT COURT

for the

Central District of California

FILED
CLERK, U.S. DISTRICT COURT
12/06/2024
CENTRAL DISTRICT OF CALIFORNIA
BY: CGM DEPUTY

United States of America

v.

ALFONSO ROMERO,

Defendant

Case No. 2:24-MJ-07252-DUTY

CRIMINAL COMPLAINT BY TELEPHONE OR OTHER RELIABLE ELECTRONIC MEANS

I, the complainant in this case, state that the following is true to the best of my knowledge and belief.

On or about October 26, 2024, in the County of Los Angeles in the Central District of California, the defendant violated:

Code Section	*Offense Description*
21 U.S.C. § 841(a)(1)	Possession with Intent to Distribute Methamphetamine
18 U.S.C. § 924(c)(1)(A)(i)	Possession of Firearm in Furtherance of a Drug Trafficking Crime

This criminal complaint is based on these facts:

Please see attached affidavit.

/s/
Complainant's signature

John T. Melbourn, ATF Special Agent
Printed name and title

Attested to by the applicant in accordance with the requirements of Fed. R. Crim. P. 4.1 by telephone.

Date: 12/6/2024

Joel Richlin
Judge's signature

City and state: Los Angeles, California

Hon. A. Joel Richlin, U.S. Magistrate Judge
Printed name and title

AUSA: Joseph S. Guzman x2438

AFFIDAVIT

I, John T. Melbourn, being duly sworn, declare and state as follows:

I. PURPOSE OF AFFIDAVIT

1. This affidavit is made in support of a criminal complaint and arrest warrant against Alfonso ROMERO ("ROMERO") for violations of 21 U.S.C. § 841(a)(1): Possession with Intent to Distribute Methamphetamine and 18 U.S.C. § 924(c)(1)(A)(i): Possession of Firearm in Furtherance of a Drug Trafficking Crime.

2. The facts set forth in this affidavit are based on my personal observations, my training and experience, and information obtained from various law enforcement personnel and witnesses. This affidavit is intended to show merely that there is sufficient probable cause for the requested complaint and arrest warrant and does not purport to set forth all of my knowledge of or investigation into this matter. Unless specifically indicated otherwise, all conversations and statements described in this affidavit are related in substance and in part only.

II. BACKGROUND OF AFFIANT

3. I am a Special Agent ("SA") with the United States Department of Justice, Bureau of Alcohol, Tobacco, Firearms and Explosives ("ATF"), and have been so employed since October of 2023. I am a "federal law enforcement officer" within the meaning of Federal Rule of Criminal Procedure 41(a)(2)(c), that

is, a government agent engaged in enforcing the criminal laws and duly authorized by the Attorney General to request a search warrant. I am currently assigned to the Los Angeles Field Division. I have completed the 12-week Criminal Investigator Training Program and the 15-week Special Agent Basic Training at the Federal Law Enforcement Training Center ("FLETC") in Glynco, Georgia.

4. I have also received specialized training while attending the academies at FLETC concerning violations of the Gun Control Act within Title 18 of the United States Code and violations of the Controlled Substances Act within Title 21 of the United States Code. That specialized training covered topics such as surveillance, interviewing, warrant writing, evidence handling, arrest procedures, search procedures, and testifying in court.

5. As an ATF SA, I have participated in investigations of various crimes, including prohibited persons possessing firearms, persons trafficking firearms and controlled substances, persons possessing illegal firearms, and persons affiliated with gang activity.

6. Prior to my employment with ATF, I completed three semesters towards a Master of Science degree in Homeland Security at San Diego State University from August 2022 to October 2023. I completed my internship requirement at the United States Marshals Service, San Diego Regional Fugitive Task Force in summer 2023. I graduated Summa Cum Laude from Seattle

University in June 2022 with a Bachelor of Science in Criminal Justice and a minor in Chemistry.

III. SUMMARY OF PROBABLE CAUSE

7. On October 26, 2024, Los Angeles Police Department ("LAPD") officers responded to a report of an assault with a deadly weapon in the City of Los Angeles. The victims reported that a man (later identified as ROMERO) had pointed an AK-style rifle at the victims while threatening to kill the victims, and then fled the area. LAPD officers obtained video of the incident from one of the victims. The video depicts ROMERO holding and pointing the AK-style rifle at the victims and wearing a blue Dodgers serape.

8. On November 20, 2024, LAPD officers searched ROMERO's residence pursuant to a search warrant. LAPD officers observed or seized, among other things, an AK-style rifle that matched the rifle ROMERO used during the October 26, 2024 incident; a blue Dodgers serape that matched the one ROMERO wore during the October 26, 2024 incident; two pistols; and approximately sixty-five rounds of ammunition. LAPD officers also observed in plain view inside a dresser drawer, methamphetamine, cocaine, two small weight scales, and a box containing plastic sandwich bags, all of which was next to a firearm and ammunition.

9. A Drug Enforcement Administration ("DEA") laboratory tested the methamphetamine and concluded ROMERO possessed approximately 623 grams of pure methamphetamine.

10. Based on the amount of methamphetamine ROMERO possessed, the two scales, and the plastic sandwich bags, I

submit there is probable cause to believe ROMERO possessed the methamphetamine with intent to distribute it. Based on LAPD finding a firearm and ammunition in the same dresser drawer and right next to the methamphetamine, I submit there is probable cause to believe ROMERO possess a firearm in furtherance of a drug trafficking offense.

IV. STATEMENT OF PROBABLE CAUSE

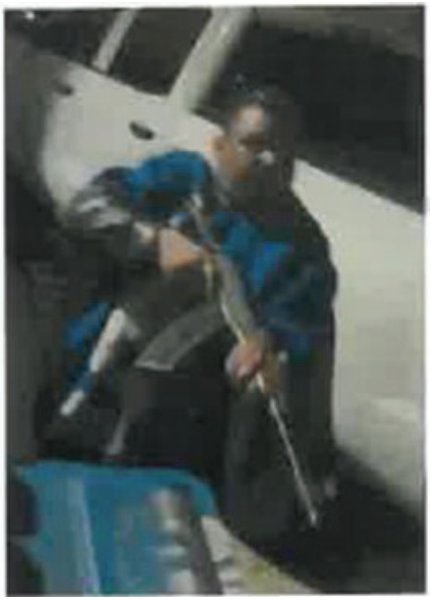
Based on my involvement in this investigation, my conversations with other law enforcement officials involved in this investigation, and my review of reports and records connected to this investigation, I am aware of the following:

A. ROMERO Commits Assault With A Deadly Weapon Outside Of His Residence On October 26, 2024.

11. On October 26, 2024, LAPD officers assigned to Hollenbeck Division Patrol responded to an assault with a deadly weapon investigation in Los Angeles, California. At the scene, LAPD officers interviewed two victims. The victims reported that a man (later identified as ROMERO) had arrived at the next-door residence and asked the victims if they "had a problem with the homies." The victims reported they did not understand what this question was about.

12. The victims reported that ROMERO then went inside his residence and returned shortly after holding an AK-style rifle. ROMERO held the rifle and pointed it at the victims while threatening to kill the victims. According to the victims, ROMERO then entered a white Chevrolet Malibu that drove off.

13. One of the victims recorded the incident on video. The video, which does not have audio, depicts ROMERO wearing a blue Los Angeles Dodgers serape and holding an AK-style rifle, as shown in the image below. One of the victims later positively identified ROMERO during a photographic line-up.



B. LAPD Interviews ROMERO, Who Denies Owning Firearms.

14. According to LAPD reports, at approximately 1:00 p.m., on November 20, 2024, LAPD officers observed a dark Chevrolet Cruze parked on the street blocking the driveway of ROMERO's residence, in violation of California Vehicle Code Section 22500. As LAPD officers approached the Chevrolet Cruze, they observed two occupants inside the vehicle smoking cannabis in public view in violation of California Health and Safety Code Section 11362.3(a). The LAPD officers observed that ROMERO was occupying the passenger seat of the Chevrolet Cruze. The LAPD officers had prior knowledge of the ongoing assault with a

deadly weapon investigation involving ROMERO and therefore detained ROMERO in furtherance of the investigation.

15. An LAPD detective arrived and interviewed ROMERO. ROMERO denied currently owning any firearms and, when asked why someone might report that ROMERO had a rifle, stated a neighbor does not like him. I have learned from my review of reports and other discussion with law enforcement officers and knowledge of this investigation that the property on which ROMERO resides contains a front unit (the "Front Unit") and a rear unit (the "Rear Unit"). While at the scene, ROMERO's mother stated that ROMERO resides in the rear blue colored property (i.e., the Rear Unit).

C. LAPD Obtains A State Search Warrant For ROMERO's Residence.

16. On November 20, 2024, Los Angeles Superior Court Judge Peter J. Mirich issued a search warrant for both the Front Unit and the Rear Unit. The search warrant authorized the seizure of items including but not limited to firearms, paperwork relating to possession of firearms, photographs depicting possession of firearms, and electronic devices which may contain digital information relating to possession of firearms.

D. LAPD Executes The Search Warrant And Finds Multiple Firearms, Ammunition, And 623 Grams Of Methamphetamine In ROMERO's Bedroom

17. On November 20, 2024, LAPD officers and detectives executed a state search warrant at ROMERO's residence (the Rear Unit) and at ROMERO's parents' residence (the Front Unit).

18. Upon executing the search warrant, LAPD officers and detectives recovered an AK-style rifle loaded with a magazine containing twenty-three (23) rounds of 7.62x39 caliber ammunition inside the closet next to a dresser inside of ROMERO's bedroom in the Rear Unit. Inside a dresser drawer ("Drawer 1"), LAPD recovered a 9mm caliber privately manufactured pistol loaded with a magazine containing 9mm caliber ammunition. Also recovered from Drawer 1 was a plastic bag containing 9mm caliber ammunition and a 12-gauge shotgun cartridge. In a separate dresser drawer ("Drawer 2") located inside the closet (the same closet where the AK-style rifle was recovered) in ROMERO's bedroom, LAPD recovered an A.A. Arms 9mm caliber pistol. Located in plain view, next to the pistol in Drawer 2, LAPD also recovered two plastic bags containing suspected methamphetamine, two plastic bags containing suspected cocaine, two small weight scales, and a box containing plastic sandwich bags.

19. In ROMERO's bedroom, LAPD detectives observed mail and paperwork with ROMERO's name on it along with the Rear Unit's street address as the address. LAPD detectives also observed photographs with ROMERO in the photograph. LAPD detectives also observed a blue Los Angeles Dodgers serape matching the blue Los Angeles Dodgers serape that ROMERO can be seen wearing in the video taken by the victims during the October 26, 2024 assault with a deadly weapon.

20. LAPD detectives spoke with ROMERO's father, Alfonso Romero Sr., while conducting the search warrant. Romero Sr.

stated that his son, ROMERO, resides in the Rear Unit, which is the rear unit on the property. Romero Sr. confirmed that the bedroom where LAPD recovered all the items was ROMERO's bedroom.

E. A Laboratory Confirms ROMERO Possessed 623 Grams of Pure Methamphetamine.

21. On or about December 4, 2024, the DEA's Southwest Laboratory analyzed the methamphetamine recovered from ROMERO's residence and confirmed that it was in fact, methamphetamine. Specifically, DEA analysis confirmed that the two plastic bags recovered from ROMERO's residence contained a total of approximately 623 grams of pure methamphetamine. DEA analysis of the suspected cocaine is currently pending.

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VII. CONCLUSION

22. For all of the reasons described above, I submit that there is probable cause to believe that ROMERO has committed violations of 21 U.S.C. §§ 841(a)(1): Possession with Intent to Distribute Methamphetamine and 18 U.S.C. § 924(c)(1)(A)(i): Possession of Firearm in Furtherance of a Drug Trafficking Crime.

Attested to by the applicant in accordance with the requirements of Fed. R. Crim. P. 4.1 by telephone on this 6 th day of December 2024.

HON. A. JOEL RICHLIN
UNITED STATES MAGISTRATE JUDGE